

Warsaw, November 25, 2022

Decision

DS.523.2704.2022

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (consolidated text: Journal of Laws of 2022, item 2000), Article 7 § 1 of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781, consolidated text), Article 6 § 1, Article 9 § 1, and Article 58 § 2 lit. b of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (Official Journal of the EU L 119 of May 4, 2016, p. 1, Official Journal of the EU L 127 of May 23, 2018, p. 2, and Official Journal of the EU L 74 of March 4, 2021, p. 35), hereinafter referred to as GDPR, after conducting administrative proceedings regarding the complaint of Ms. A. K., residing in T., concerning irregularities in the processing of her personal data by G. Sp. z o.o., consisting of processing personal data in the form of a private phone number without legal basis and disclosing a special category of data, namely health-related data without legal basis, the President of the Personal Data Protection Office issues a reprimand to G. Sp. z o.o. for violating Article 6 § 1 GDPR by processing the personal data of Ms. A. K., residing in T., regarding her private phone number without legal basis; issues a reprimand to G. Sp. z o.o. for violating Article 9 § 1 GDPR by disclosing personal data of Ms. A. K. to unauthorized persons regarding health-related data, namely disclosing information about the fact that she was on sick leave to the representative of the Company's contractor and to an unauthorized person employed by the Company.

Justification

The Personal Data Protection Office (hereinafter: "UODO") received a complaint from Ms. A. K., residing in T. (hereinafter referred to as the Complainant), regarding irregularities in the processing of her personal data by G. Sp. z o.o. (hereinafter referred to as the Company), consisting of processing personal data in the form of a private phone number without legal basis and disclosing a special category of data, namely health-related data without legal basis.

During the conducted explanatory proceedings in this matter, the President of the Personal Data Protection Office established the following factual state:

The Complainant and the Company entered into a fixed-term employment contract from (...) July 2021 to (...) July 2022 (evidence: letter from the Company dated (...) May 2022).

On (...) March 2022, in an email sent from the email address (...) to the representative of the Company's contractor Mr. T. S. at the email address (...), the Company provided information about the fact that the Complainant was on sick leave L-4 due to "poor emotional state" (evidence: letter from the Complainant dated (...) April 2022).

The Complainant indicated that on (...) March 2022 – (...) March 2022, during her sick leave, the Company provided information to an employee of the Company, Ms. K. K., who did not have access to confidential employee information, about the fact that the Complainant was on sick leave and its content, which Ms. K. K. confirmed in a phone conversation on (...) March 2022 at (...) o'clock, conducted from the Complainant's private mobile phone (evidence: letter from the Complainant dated (...) April 2022).

The Complainant indicated that on (...) March 2022, (...) March 2022, and (...) March 2022, the Company used the Complainant's private mobile phone number for contact in business matters (evidence: letter from the Complainant dated (...) April 2022).

The Company indicated that it processes the Complainant's personal data based on Article 221 § 1 and Article 92 § 1 of the Act of June 26, 1974, the Labor Code (consolidated text: Journal of Laws of 2022, item 1510, as amended) and Article 36 § 2 of the Act of October 13, 1998, on the Social Security System (consolidated text: Journal of Laws of 2022, item 1009, as amended) in connection with Article

6 § 1 lit. a, lit. c, and Article 9 § 2 lit. b GDPR in connection with the processing of personal data to the extent necessary to fulfill the obligations imposed on the Company.

The Company indicated that the disclosure of information about the Complainant being on sick leave was dictated by "an exceptional circumstance justifying the fact that in place of Ms. A. K., her duties will temporarily be performed by another person. Furthermore, it justified the fact of the prolonged lack of contact from the Employee with respect to a key contractor of the Company" (evidence: letter from the Company dated (...) May 2022).

The Company indicated that it informed Ms. K. K. about the fact that the Complainant was on sick leave without specifying and providing details and the duration of the absence (evidence: letter from the Company dated (...) May 2022).

The Company indicated that Ms. A. K. was provided with a company mobile phone along with a separate phone number (...) registered in the network (...) (evidence: letter from the Company dated (...) May 2022).

The Company indicated that in the case of absence...

the results of medical examinations, and any other information that reveals the health status of the individual concerned.

The second action considered in the course of the case is the disclosure of the complainant's data regarding her sick leave and the content of that leave to third parties, namely Ms. K. K. and Mr. T. S.

The GDPR defines the obligations of the data controller, which include processing personal data in accordance with the conditions specified in this regulation. The provision authorizing the controller to process special categories of personal data is Article 9(1) and (2) of the GDPR. According to Article 9(1) of the GDPR, the processing of personal data concerning the health of an individual is prohibited. According to Article 9(2) of the GDPR, Article 9(1) does not apply when at least one of the conditions specified in that provision is met. The list of conditions mentioned in Article 9(2) of the GDPR is closed. Each of the conditions legitimizing the processing of personal data is autonomous and independent. This means that the aforementioned provision legitimizes the processing of data when at least one of the enumerated conditions is met.

Information about the complainant's sick leave and the approximate content of the leave constitutes health data, and thus one of the special categories of data enumerated in Article 9(1) of the GDPR. According to Recital 35 of the GDPR, health-related personal data includes all data concerning the health status of the individual to whom the data relates, revealing information about the past, present, or future physical or mental health status of the individual concerned. Such data includes, among other things, any information regarding illness, risk of illness, medical history, the results of medical examinations, and any other information that reveals the health status of the individual concerned. physiological or biomedical condition of the person to whom the data pertains, regardless of their source, which may be, for example, a doctor or another healthcare worker. Furthermore, Article 4 point 15 of the GDPR defines health data as personal data concerning the physical or mental health of a natural person - including information about the use of healthcare services - revealing information about the state of their health. Information regarding the Applicant being on medical leave is health data, as it reveals information about the Applicant's health status and their use of healthcare services, since the mere fact of receiving medical leave indicates that the Applicant has utilized such a service and that, due to their health condition, they should not perform work in their position. The Company justifies the disclosure of this data to the aforementioned individuals by the necessity to explain to the Company's contractors the difficulties in contacting the Company, as well as the necessity to reorganize the duties of other employees in light of the Applicant's absence from work. It should be stated that the above reasons do not constitute any of the grounds from Article 9 paragraph 2 of the GDPR that legalize the processing of special categories of personal data, such as the disclosure of data to third parties, namely Ms. K. K. and Mr. T. S.

In light of the above, considering the circumstances presented by the Applicant and acting based on

Article 58 paragraph 2 letter b of the GDPR, according to which each supervisory authority has the power to issue a reprimand to the administrator or processor in the event of a violation of the provisions of this regulation by a processing operation, the President of the Personal Data Protection Office finds it justified to issue a reprimand to the Company regarding the identified violation of the provisions of Article 6 paragraph 1 of the GDPR and Article 9 paragraph 1 of the GDPR.

In this factual and legal situation, the President of the Personal Data Protection Office has decided as stated in the operative part.

The decision is final. Based on Article 7 paragraph 2 of the Act of May 10, 2018 on the protection of personal data (Journal of Laws of 2019, item 1781, consolidated text) and in connection with Article 13 § 2, Article 53 § 1, and Article 54 of the Act of August 30, 2002 on proceedings before administrative courts (Journal of Laws of 2019, item 2325, as amended), the party has the right to appeal against this decision to the Provincial Administrative Court in Warsaw within 30 days from the date of delivery of this decision, through the President of the Personal Data Protection Office (address: Personal Data Protection Office, ul. Stawki 2, 00 – 193 Warsaw). The fee for the appeal is 200 zlotys. The party has the right to apply for legal aid, including exemption from court fees.

Print article

Metadata

Disclosing entity:

Complaints Department

Information created by:

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2022-11-25

Information entered by:

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2023-09-22 09:00:13

Last modified by:

Edyta Madziar

2023-09-27 13:10:49